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CASE
NAME: Joe
Casanova, et al. v. Volkswagen Group of America, Inc., et al.

Plaintiffs'
Motion for Attorneys' Fees, Costs, and Expenses

TENTATIVE
RULING

The Court GRANTS Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses in the amount of $23,375.00, comprising $23,375.00 in attorney fees and $0.00 in costs.

Plaintiffs are ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On September 8, 2023, plaintiffs Joe Casanova and Blanca Ramirez (collectively, Plaintiffs) filed this action against defendants Volkswagen Group of America, Inc. (Volkswagen), Covina Volkswagen (collectively, Defendants), and Does 1 through 10, alleging causes of action for violation of subdivisions (D), (B), and (A)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, and negligent repair. On January 23, 2024, the Court sustained Defendant Covina Volkswagen's demurrer to the Fifth Cause of Action for negligent repair with leave to amend. Plaintiffs did not file an amended complaint.

On February 17, 2026, Plaintiffs moved for attorneys' fees, costs, and expenses. On July 31, 2026, Defendant Volkswagen opposed the Motion. On August 6, 2026, Plaintiffs filed evidentiary objections, but did not file a Reply to Defendant's Opposition.

LEGAL STANDARD

"The following items are allowable as costs under Section 1032:… (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney… involved in the presentation of the case." (Christian Research Institute v. Alnor (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]" (Wilkerson v. Sullivan (2002) 99 Cal.App.4th 443, 448.)

"The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

OBJECTIONS

The Court OVERRULES the parties' evidentiary objections, as the Court does not rely on that evidence in reaching its decision herein.

REQUESTS FOR JUDICIAL NOTICE

The Court DENIES Plaintiffs' requests for judicial notice, as the Court does not rely on that evidence in reaching its decision herein.

DISCUSSION

Summary of Arguments

Plaintiffs move under Civil Code section 1794, subdivision (d), for attorneys' fees, costs, and expenses totaling $55,154.16, following their acceptance of Volkswagen's 998 offer, plus fees, costs, and expenses. Plaintiffs contend they are the prevailing party under the Song-Beverly Consumer Warranty Act because they obtained relief after filing suit and litigating the matter, and that a mandatory fee-shifting statute entitles them to all fees reasonably incurred. Plaintiffs' request comprises a lodestar of $33,758.50 for 68.8 hours billed at hourly rates ranging from $195.00 to $675.00, a 1.35 lodestar multiplier ($11,815.48, yielding $45,573.98 in enhanced fees), $5,580.18 in costs and expenses, and $4,000.00 in anticipated fees to review the opposition, prepare a reply, and attend the hearing. Plaintiffs argue the hours were reasonable and non-duplicative, noting that although 19 attorneys and 6 law clerks were staffed, four attorneys performed roughly 60% of the work, and that Volkswagen's litigation conduct forced the work performed. Plaintiffs contend their rates are consistent with rates courts throughout California have approved for the firm, and they submit a request for judicial notice of 35 prior fee orders to establish prevailing market rates. Plaintiffs argue the 1.35 multiplier is warranted by the results obtained, the contingent risk of the representation, and the delay in payment.

In opposition, Volkswagen argues that this was a routine lemon law matter that presented no novel or complex issues, did not go to trial, and did not require the involvement of the 25 timekeepers reflected in the billing records. Volkswagen contends the requested rates are inflated and should be reduced to $350.00 per hour, citing Mikhaeilpoor v. BMW of North America, LLC, in which the Court of Appeal affirmed a reduction of Plaintiffs' counsel's rates to that level. Volkswagen challenges specific entries as inflated, duplicative, or fabricated, including 12.6 hours "preparing" Plaintiffs for depositions that were then postponed, paired half-hour "value billing" entries, 3.2 hours drafting boilerplate deposition objections, and 12.9 hours drafting template motions in limine and trial documents after plaintiffs already knew they would accept the section 998 offer. Volkswagen asks the Court to reduce the hours from 68.8 to 48 (roughly 30%) at $350.00 per hour, for total fees of no more than $16,800.00. Volkswagen argues no multiplier is warranted because the case lacked novelty or difficulty, a contingency enhancement would double count factors already reflected in the rates, and any contingent risk ended once fees became mandatory. Volkswagen also asks the Court to strike or reduce the claimed $5,580.18 in costs to no more than $2,000.00, arguing that Plaintiffs filed no memorandum of costs, submitted no invoices, and seek charges that were convenient rather than necessary.

Analysis

Prevailing Parties

There is no dispute that Plaintiffs are the prevailing parties and therefore entitled to recover attorney fees and costs. The parties' settlement agreement provides that such fees and costs may be determined by way of a noticed motion. (Chandy Decl., Ex. 2; Civ. Code, ¶ 1794, subd. (d).)

Hourly Rates

The Court finds some of Plaintiff's counsel's hourly rates somewhat excessive for the East Judicial District, including the rates of $595.00, $610.00, $650.00, and $675.00 for more senior attorneys and $195.00 and $345.00 for law clerks. (Chandy Decl., Ex. 1, p. 31 of pdf.) "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court finds that a blended rate of $500.00 per hour for the attorneys and a reduced rate of $175.00 for all the law clerks is appropriate and reasonable for this case. (See Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 246-247 (Mikhaeilpoor) [trial courts vested with discretion in determining appropriate hourly rates in fee motions].) This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience. An award at the rates requested comes with the expectation that the attorneys work in an efficient manner that reflects the elevated premium paid for their services. The Court considers this factor in addressing the reasonableness of the hours expended.

Hours Expended

Plaintiffs also provided a verified fee bill, which is prima facie evidence that Plaintiff(s)' fees and costs listed therein were necessarily incurred. (Chandy Decl., Ex. 1; Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].) As noted above, Defendant disputed many entries.

The Court finds Plaintiffs'

counsel’s claimed hours expended slightly excessive. 68.8 hours on its face is not unreasonable for approximately three years’ worth of litigation containing some motion practice. But, there was nothing unique or complex about this case, and the issues involved were applicable to other consumers’ vehicles, thereby triggering economies of scale in terms of Plaintiffs’ counsel’s efficiency in litigating this type of lemon law case. Litigating this matter “’should not have required anything more than [a] slight factual modification to [an] existing boilerplate.’” (See Mikhaeilpoor, supra, 48 Cal.App.5th at p. 250.) The Court also finds some of Plaintiffs’ counsel’s billing problematic, including but not necessarily limited to over ten hours preparing for Plaintiffs’ depositions in August 2025. The Court also finds the use of 25 timekeepers inherently problematic and suspect. (Chandy Decl., Ex. 1, pp. 28 and 31 of pdf.)

The Court also does not find a multiplier warranted here. (See Pasternack v. McCullough (2021) 65 Cal.App.5th 1050, 1058 [judge has discretion to award multiplier]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139 [“a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. Nor should a fee enhancement be imposed for the purpose of punishing the losing party”].)

Considering these facts, the Court ultimately finds the amount billed somewhat excessive under the circumstances. In light of the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, including the time spent on this motion, using a lodestar methodology, is as follows:

1. 45.0 hours for attorney work at the blended hourly rate of $500.00, for a subtotal of $22,500.00; and

2. 5.0 hours for law clerk work at the reduced hourly rate of $175.00, for a subtotal of $875.00.

3. Total

Attorney Fees = $23,375.00

The Court finds this to be the reasonable amount billed for all tasks in this matter.

Costs and Expenses

Under California Rule of Court, Rule 3.1700, "a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment … ." There is no special exemption from this rule for Song-Beverly cases. And this time limit for recovery of costs is mandatory. (Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.(1990) 223 Cal.App.3d 924, 929.) Plaintiffs dismissed the complaint without prejudice on November 3, 2025 and the clerk entered the dismissal the same date. (Minute Order 11/3/25.) Plaintiff gave notice of the dismissal on December 11, 2025. (Notice of Ruling filed 12/11/25.) Therefore, Plaintiffs were required to file a memorandum of costs within 15 days after service of the notice of dismissal. (See Sanabria v. Embrey (2001) 92 Cal.App.4th 422, 426 [“If notice of entry of dismissal is served, a dismissed defendant claiming costs must serve and file a memorandum of costs within 15 days after ‘the date of service of written notice of entry of . . . dismissal.’ (Cal. Rules of Court, rule 870(a)”].) "The time provisions relating to the filing of a memorandum of costs, while not jurisdictional, are mandatory." (Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co. (1990) 223 Cal. App. 3d 924, 929.)

As Defendant correctly notes, Plaintiffs did not file a memorandum of costs and did not file this motion until February 17, 2026. Plaintiffs therefore forfeited their right to costs. (Cal. Rules of Court, rule 3.1700; Kaufman v. Diskeeper Corp. (2014) 229 Cal.App.4th 1, 6 [“We agree with the trial court that [defendant] was required to file a memorandum of costs in order to recover the other costs and expenses it sought, and that [defendant’s] failure to do so worked a forfeiture regarding them”].)

Based on the foregoing, the Court GRANTS Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses in the amount of $23,375.00, comprising $23,375.00 in attorney fees and $0.00 in costs.

CONCLUSION

The Court GRANTS Plaintiffs’ Motion for Attorneys’ Fees, Costs, and Expenses in the amount of $23,375.00, comprising $23,375.00 in attorney fees and $0.00 in costs.

Plaintiffs are ordered to give notice of the Court’s ruling within five calendar days of this order.